

21STCV31219 21STCV31219

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-26

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Case Number: 21STCV31219 Hearing Date: August 26, 2026 Dept: H

Thomas, et al. v. Pomona

Healthcare & Wellness Center, LLC., Case No. 21STCV31219

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

Counsel for Defendant Pomona

Healthcare & Wellness Center, LLC's (i.e., Gregg J. Gittler) Motion to be Relieved as Counsel is GRANTED, contingent upon moving counsel filing a proof of service reflecting that Defendant (the client) was served with the motion in compliance with Code of Civil Procedure section 1005, subdivision (b) at or before the time of the hearing. The Court will set an Order to Show Cause Re: Representation of LLC for October 5, 2026, at 9:00 a.m.

Background

Plaintiff Brenda Thomas, individually and as heir and successor in interest to Larry Charles Jackson, deceased ("Plaintiff") alleges that Larry Charles Jackson contracted COVID-19 during his residency at Park Avenue Healthcare & Wellness Center in Covina, which ultimately led to his decline and death on August 25, 2020.

On August 24, 2021, Plaintiff filed a complaint, asserting causes of action against Pomona Healthcare & Wel[l]ness Center, LLC dba Park Avenue Healthcare & Wellness Center ("Defendant"), Does 1-50, and Does 51-60 for: (1) Violations of the Elder and Dependent Adult Civil Protection Act [Welf. & Inst. Code § 15600 et seq.], (2) Negligence, and (3) Wrongful Death.

A Final Status Conference is set for January 12, 2027.

A Jury Trial is scheduled to begin on January 26, 2027.

Notice

At the outset, the Court observes that the July 23, 2026 proof of service accompanying the motion reflects electronic service on Plaintiffs only. Although moving counsel represented in his declaration accompanying the motion that Defendant was personally served with the motion, she has not filed a proof of service reflecting that Defendant was served with the motion. Proof of Service was due by August 19, 2026, per California Rules of Court, rule 3.1300, subdivision (c).

The following analysis, then, is contingent upon moving counsel filing proof of service reflecting that Defendant was served with the motion in compliance with Code of Civil Procedure section 1005, subdivision (b) at or before the time of the hearing.

Discussion

Gregg J. Gittler of Gittler & Berg seeks to be relieved as counsel of record for Defendant.

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398.)

California Rule of Court ("CRC") Rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under

Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

Attorney Gittler represents that there has been an irreparable breakdown in the law firm's and Defendant's relationship and communications. Defendant has withheld payment for services rendered since April 2026. Gittler states that the firm is prepared to disclose specifics to this Court in camera. Gittler further states that the firm requested that Defendant execute substitutions of counsel, but it has not done so.

Gittler states that he has personally served the client with copies of the motion papers filed with his declaration.

The Court determines that the requirements of Rules of Court rule 3.1362 enumerated above have been sufficiently met.

Accordingly, the motion is granted, effective upon the filing of the proof of service reflecting personal service of the signed order upon the Defendant.

Because limited liability companies may only appear in court proceedings through counsel, the Court will set an Order to Show Cause Re: Representation of Pomona Healthcare & Wellness Center, LLC for October 5, 2026, at 9:00 a.m. If Defendant is not obtained new counsel on or before that date, the Court may strike its answer and enter default. Moving counsel to provide notice.